

MOCK EMAIL EXCHANGE: SETTLEMENT NEGOTIATION EXERCISE

Case Style: John Doe v. Apex Delivery Services, Inc.

Claim Number: 2026-0214-AX

Date of Loss: February 14, 2026

Line Spacing: 1.15

EMAIL 1: INITIAL COMPREHENSIVE SETTLEMENT DEMAND

From: Case Manager Trainee / Claimant Representative

To: Litigation Division, Aggressive Casualty Insurance

Date: May 15, 2026

Subject: FORMAL SETTLEMENT DEMAND - Claimant: John Doe | Claim: 2026-0214-AX

Dear Claims Adjuster,

Please find attached our formal settlement packet regarding the catastrophic injuries sustained by our client, Mr. John Doe, on February 14, 2026. This matter involves clear, unarguable liability on behalf of your insured, Apex Delivery Services.

I. Liability and Mechanism of Injury

On Valentine's Day, 2026, an Apex commercial F-150 operated by your driver disregarded traffic control devices and failed to yield the right of way, resulting in a high-velocity, commercial T-bone collision at 4th Ave & Main St. The impact caused heavy driver-side intrusion into the B-pillar of Mr. Doe's 2023 Tesla. The collision was so severe that the Metro Center Fire Department had to perform heavy mechanical extrication utilizing the Jaws of Life to remove Mr. Doe from the wreckage.

II. Objective Medical Metrics and Surgical Intervention

Mr. Doe was rushed via EMS trauma transport to Metro General Hospital under Level 1 Trauma protocols. He presented with an extensive 12cm stellate laceration to his left cheek and jaw with embedded glass fragments, alongside excruciating spinal pain. Emergency surgery was performed, requiring a highly complex multi-layer surgical repair consisting of 42 total sutures (12 subcutaneous Interrupted Vicryl 4-0 sutures and 30 epidermal Prolene 6-0 sutures) to close the wound.

Furthermore, diagnostics confirmed profound multi-level spinal trauma:

- **Initial ER Findings:** Grade 2 muscle spasms spanning L4-S1 and a loss of normal cervical lordosis.
- **March 10, 2026 MRI:** Revealed a 3mm herniation at L4-L5 with heavy thecal sac



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compression and acute edema at C5-C6.

- **April 20, 2026 EMG Study:** Documented active denervation in the Left L5 distribution. This serves as the electrical "smoking gun" proving permanent nerve root damage and chronic radiculopathy.

Due to the failure of conservative chiropractic care and an emerging "foot drop" (Left Hallux extension strength deteriorated to 3/5), Mr. Doe underwent a Lumbar Microdiscectomy on May 12, 2026, performed under an operating microscope by Dr. Sarah Spine, MD, to excise a large, extruded disc fragment impinging heavily on the L5 nerve root.

III. Addressing the 14-Day Treatment Interruption ("The Gap Defense")

We anticipate your team will attempt to weaponize the 14-day gap in treatment between April 1 and April 15. Let us be entirely clear: this was not a cessation of injury, but rather a direct clinical manifestation of profound mental trauma. As documented by neuropsychologist Dr. Mindy Health, PhD, Mr. Doe suffered from Post-Traumatic Stress Disorder (F43.10) with Acute Dissociative Withdrawal. Following the removal of his initial surgical facial sutures, he suffered severe psychological trauma when viewing his permanent cosmetic disfigurement, creating a profound psychological barrier that isolated him from social reintegration and treatment compliance.

IV. Addressing the 2018 Workplace Record ("The Eggshell Plaintiff")

A review of historical records notes a 2018 lumbar strain from a workplace lifting incident. However, Mr. Doe completed his physical therapy and was discharged at Maximum Medical Improvement (MMI) with completely resolved symptoms and zero permanent restrictions. He remained completely asymptomatic for nearly eight years. Under the well-established "Eggshell Plaintiff" doctrine, your insured took my client as they found him. The violent commercial impact transformed a dormant, asymptomatic spine into a chronic, permanent neurological deficit.

V. Permanent Impairment and Economic Special Damages

Mr. Doe is a 45-year-old male who has reached a point of stability but is left with permanent deficits. Dr. Neil Ron, MD (Board Certified Neurologist) has assigned a 5% Whole Person Impairment (WPI) rating, citing permanent chronic axonal damage. Mr. Doe has been placed on permanent "Light Duty" vocational restrictions, legally preventing him from returning to his career as a Senior Logistics Manager, which requires heavy lifting and warehouse floor mobility. Our itemized economic damages are summarized in the table below:

Provider / Service Entity	Service Type / Description	Amount
Metro Center Fire Dept.	Heavy Mechanical Extrication / Jaws of Life Operations	\$1,850.00
Metro General Hospital	ER Facility, Level 1 Trauma Intake & Central Lab	\$12,400.00
Specialist Surgeon Group	Facial Suture & Multi-Layer	\$3,200.00



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Provider / Service Entity	Service Type / Description	Amount
	Plastic Reconstruction	
Metropolis Radiology	MRI Spinal Mapping (Technical & Professional Reading)	\$2,100.00
City Chiropractic & Rehab	Active Conservative Physical Rehabilitation (To Date)	\$8,400.00
Verified Lost Wages	Full & Intermittent Absences (W-2 Supported)	\$15,900.00
Future Care Projection (5-Yr)	Necessary PT, ESIs, and Annual MRI Monitoring (Dr. Spine)	\$57,000.00
TOTAL ECONOMIC SPECIALS	Combined Hard & Projected Economic Damages	\$100,850.00

Given the permanent facial disfigurement, chronic foot drop, loss of earning capacity, and clear liability under a \$1,000,000.00 Aggressive Casualty policy, we hereby make a formal demand of **\$250,000.00** to fully resolve this claim. This offer remains open for exactly thirty (30) days from receipt.

Sincerely,
Case Management Division

EMAIL 2: THE INSURANCE ADJUSTER'S PUSHBACK (REPLY)

From: Litigation Claims Adjuster, Aggressive Casualty Insurance

To: Case Management Division

Date: May 22, 2026

Subject: RE: FORMAL SETTLEMENT DEMAND - Claimant: John Doe | Claim: 2026-0214-AX

Dear Counsel / Case Management Team,

We have completed our preliminary review of your settlement demand packet for Mr. John Doe. While we acknowledge the collision was significant, your demand of \$250,000.00 is highly excessive and fails to align with the core medical history and subrogation realities of this file. Aggressive Casualty is prepared to extend a counteroffer, but several major value-reducers must be addressed:

1. **Severe Pre-Existing Conditions (The 2018 Adjuster Landmine):** Our index search has uncovered a prior clinical progress note from August 12, 2018, documenting a "Workplace Lifting Incident." Mr. Doe reported a "popping" sensation with pain radiating into his left



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buttock, explicitly raising concerns about his ability to perform warehouse duties. This demonstrates that your client had long-standing, pre-existing chronic lower back pain and left-sided radicular symptoms localized at L4-L5 a full eight years before our accident. No MRI was performed in 2018, making it impossible to prove this wasn't an already herniated disc.

2. **The 14-Day Treatment Gap:** Your client completely walked away from all physical rehabilitation between April 1 and April 15. In personal injury claims, a total cessation of treatment strongly indicates a stabilization or resolution of injuries. We cannot accept a subjective psychological report written after-the-fact as a valid legal pass for failing to mitigate physical medical damages.
3. **Specials Ledger Double-Counting & Collateral Sources:** Your ledger incorporates a \$15,000.00 estimate on Page 2 and then spikes to a \$57,000.00 projection from Dr. Spine on Page 18. Furthermore, we hold a Notice of Statutory Subrogation Lien from Global Health Blue-Shield indicating they paid a total of only \$11,200.00 to completely satisfy the hospital, radiology, and surgical center facility fees. Under state collateral source laws, Mr. Doe cannot recover the face value of billed rates that were never paid.

To avoid prolonged litigation and facilitate a rapid closure, Aggressive Casualty Insurance is prepared to offer **\$45,000.00** as a full and final settlement of all claims.

Regards,

Litigation Claims Adjuster

Aggressive Casualty Insurance

EMAIL 3: THE CASE MANAGER'S REBUTTAL AND CLOSING REASONING

From: Case Manager Trainee / Claimant Representative

To: Litigation Claims Adjuster, Aggressive Casualty Insurance

Date: May 26, 2026

Subject: RE: FORMAL SETTLEMENT DEMAND - Claimant: John Doe | Claim: 2026-0214-AX

Dear Adjuster,

Your counteroffer of \$45,000.00 is rejected. It represents an bad-faith undervaluation of a catastrophic commercial injury claim that your own insured caused. Let us systematically dismantle your defenses for a jury:

- **Your "Landmine" is Our Foundation:** The 2018 progress notes you cited explicitly state that on September 15, 2018, Mr. Doe completed his physical therapy, his "symptoms resolved," and he was discharged with "no permanent restrictions." For nearly 8 consecutive years, he worked full-time without a single day of medical treatment or light-duty restriction. This perfectly anchors our Aggravation of a Pre-Existing Condition argument. Your driver shattered a structurally vulnerable but completely asymptomatic spine. A jury will punish a defense that tries to blame an 8-year-old resolved strain for an injury requiring a microdiscectomy.
- **The EMG is Incontrovertible:** You failed to address the April 20, 2026 EMG study showing active denervation in the Left L5 distribution. Nerve conduction and needle electromyography studies cannot be faked or impacted by subjective bias; they are hard,



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objective, electrical proof of severe, permanent nerve root damage. This is further confirmed by Dr. Ron's permanent 5% Whole Person Impairment rating due to permanent chronic axonal damage sustained during the entrapment phase.

- **The Subrogation Lien Proves High Severity:** The \$11,200.00 statutory lien from Global Health represents only the health insurance company's contracted repayment right—it does not limit Mr. Doe's right to claim total economic special damages, future medical necessity (\$57,000.00 detailed by an orthopedic surgeon), and significant non-economic pain and suffering stemming from structural disfigurement and a permanent foot drop.

Mr. Doe can no longer pick up his 2-year-old child due to lumbar instability, nor can he return to his career as a Senior Logistics Manager due to his permanent physical restrictions. We are fully prepared to file suit and let a jury evaluate these objective facts. Our demand remains **\$250,000.00**. We advise you to review your commercial casualty limits and protect your insured from an excess verdict.

Sincerely,

Case Management Division